

Resolution: Appointment of Information Officer

[NOVA BUSINESS OS (PTY) LTD] Registration number: [●] Resolution of the Board of Directors / Sole Director Date: [●]

Background

The Protection of Personal Information Act 4 of 2013 ("POPIA") section 55, read with the Promotion of Access to Information Act 2 of 2000 ("PAIA"), requires every private body to have an Information Officer responsible for compliance, and to register that officer with the Information Regulator before taking up duties.

By default, the head of a private body (the managing director or equivalent) is the Information Officer, and may authorise another person in writing.

Resolution

It is resolved that:

1. [Full name ●], [ID number ●], in their capacity as [Director / title ●], is confirmed and appointed as the **Information Officer** of the company with effect from [date ●].
 2. The Information Officer's responsibilities include (POPIA s 55(1), Regulation 4):
 - encouraging and ensuring compliance with the conditions for lawful processing of personal information;
 - developing, implementing, and maintaining a compliance framework and this company's POPIA policies;
 - ensuring a personal information impact assessment is done to ensure adequate safeguards;
 - developing, monitoring, and maintaining the PAIA Manual;
 - developing internal measures and adequate systems to process requests for information or access;
 - ensuring internal awareness sessions are conducted on POPIA, regulations, codes of conduct, and the PAIA Guide;
 - dealing with requests made under PAIA and POPIA;
 - working with, and responding to, the Information Regulator;
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- ensuring that data breaches are handled and notified in terms of POPIA section 22.
3. [Optional: **[Full name ●]** is designated as **Deputy Information Officer** under POPIA section 56 to assist with the above duties.]
 4. The Information Officer must be registered with the Information Regulator via the Regulator's online portal (info regulator.org.za) before taking up duties, and the registration confirmation must be retained with this resolution.
 5. The Information Officer's contact details (hello@novahr.co.za, [phone ●]) must be published in the Privacy Policy and PAIA Manual.

Signature

Signed at [place ●] on [date ●].

[Director name ●] Director

Compliance checklist (internal):

- ☐ Resolution signed and filed
- ☐ Information Officer registered on the Information Regulator portal
- ☐ Registration confirmation saved to company records
- ☐ Contact details published in Privacy Policy and PAIA Manual
- ☐ POPIA training completed by the Information Officer